I answer that, By excommunication the ecclesiastical judge excludes a man, in a sense, from the kingdom. Wherefore, since he ought not to exclude from the kingdom others than the unworthy, as was made clear from the definition of the keys (Q[17], A[2]), and since no one becomes unworthy, unless, through committing a mortal sin, he lose charity which is the way leading to the kingdom, it follows that no man should be excommunicated except for a mortal sin. And since by injuring a man in his body or in his temporalities, one may sin mortally and act against charity, the Church can excommunicate a man for having inflicted temporal injury on anyone. Yet, as excommunication is the most severe punishment, and since punishments are intended as remedies, according to the Philosopher (Ethic. ii), and again since a prudent physician begins with lighter and less risky remedies, therefore excommunication should not be inflicted, even for a mortal sin, unless the sinner be obstinate, either by not coming up for judgment, or by going away before judgment is pronounced, or by failing to obey the decision of the court. For then, if, after due warning, he refuse to obey, he is reckoned to be obstinate, and the judge, not being able to proceed otherwise against him, must excommunicate him.

Reply to Objection 1: A fault is not measured by the extent of the damage a man does, but by the will with which he does it, acting against charity. Wherefore, though the punishment of excommunication exceeds the harm done, it does not exceed the measure of the sin.

Reply to Objection 2: When a man is corrected by being punished, evil is not rendered to him, but good: since punishments are remedies, as stated above.

Whether an excommunication unjustly pronounced has any effect?

Objection 1: It would seem that an excommunication which is pronounced unjustly has no effect at all. Because excommunication deprives a man of the protection and grace of God, which cannot be forfeited unjustly. Therefore excommunication has no effect if it be unjustly pronounced.

Objection 2: Further, Jerome says (on Mat. 16:19: "I will give to thee the keys"): "It is a pharisaical severity to reckon as really bound or loosed, that which is bound or loosed unjustly." But that severity was proud and erroneous. Therefore an unjust excommunication has no effect.

On the contrary, According to Gregory (Hom. xxvi in Evang.), "the sentence of the pastor is to be feared whether it be just or unjust." Now there would be no reason to fear an unjust excommunication if it did not hurt. Therefore, etc.

I answer that, An excommunication may be unjust for two reasons. First, on the part of its author, as when anyone excommunicates through hatred or anger, and then, nevertheless, the excommunication takes effect, though its author sins, because the one who is excommunicated suffers justly, even if the author act wrongly in excommunicating him. Secondly, on the part of the excommunication, through there being no proper cause, or through the sentence being passed without the forms of law being observed. In this case, if the error, on the part of the sentence, be such as to render the sentence void, this has no effect, for there is no excommunication; but if the error does not annul the sentence, this takes effect, and the person excommunicated should humbly submit (which will be credited to him as a merit), and either seek absolution from the person who has excommunicated him, or appeal to a higher judge. If, however, he were to contemn the sentence, he would "ipso facto" sin mortally.

But sometimes it happens that there is sufficient cause on the part of the excommunicator, but not on the part of the excommunicated, as when a man is excommunicated for a crime which he has not committed, but which has been proved against him: in this case, if he submit humbly, the merit of his humility will compensate him for the harm of excommunication.

Reply to Objection 1: Although a man cannot lose God's grace unjustly, yet he can unjustly lose those things which on our part dispose us to receive grace. for instance, a man may be deprived of the instruction which he ought to have. It is in this sense that excommunication is said to deprive a man of God's grace, as was explained above (A[2], ad 3).

Reply to Objection 2: Jerome is speaking of sin not of its punishments, which can be inflicted unjustly by ecclesiastical superiors.

OF THOSE WHO CAN EXCOMMUNICATE OR BE EXCOMMUNICATED (SIX ARTICLES)

We must now consider those who can excommunicate or be excommunicated. Under this head there are six points of inquiry:

(1) Whether every priest can excommunicate?

(2) Whether one who is not a priest can excommunicate?

(3) Whether one who is excommunicated or suspended, can excommunicate?

(4) Whether anyone can excommunicate himself, or an equal, or a superior?

(5) Whether a multitude can be excommunicated?

(6) Whether one who is already excommunicated can be excommunicated again?

Whether every priest can excommunicate?

Objection 1: It would seem that every priest can excommunicate. For excommunication is an act of the keys. But every priest has the keys. Therefore every priest can excommunicate.

Objection 2: Further, it is a greater thing to loose and bind in the tribunal of penance than in the tribunal of judgment. But every priest can loose and bind his subjects in the tribunal of Penance. Therefore every priest can excommunicate his subjects.

On the contrary, Matters fraught with danger should be left to the decision of superiors. Now the punishment of excommunication is fraught with many dangers, unless it be inflicted with moderation. Therefore it should not be entrusted to every priest.

I answer that, In the tribunal of conscience the plea is between man and God, whereas in the outward tribunal it is between man and man. Wherefore the loosing or binding of one man in relation to God alone, belongs to the tribunal of Penance, whereas the binding or loosing of a man in relation to other men, belongs to the public tribunal of external judgment. And since excommunication severs a man from the communion of the faithful, it belongs to the external tribunal. Consequently those alone can excommunicate who have jurisdiction in the judicial tribunal. Hence, of their own authority, only bishops and higher prelates, according to the more common opinion can excommunicate, whereas parish priests can do so only by commission or in certain cases, as those of theft, rapine and the like, in which the law allows them to excommunicate. Others, however,

have maintained that even parish priests can excommunicate: but the former opinion is more reasonable.

Reply to Objection 1: Excommunication is an act of the keys not directly, but with respect to the external judgment. The sentence of excommunication, however, though it is promulgated by an external verdict, still, as it belongs somewhat to the entrance to the kingdom, in so far as the Church Militant is the way to the Church Triumphant, this jurisdiction whereby a man is competent to excommunicate, can be called a key. It is in this sense that some distinguish between the key of orders, which all priests have, and the key of jurisdiction in the tribunal of judgment, which none have but the judges of the external tribunal. Nevertheless God bestowed both on Peter (Mat. 16:19), from whom they are derived by others, whichever of them they have.

Reply to Objection 2: Parish priests have jurisdiction indeed over their subjects, in the tribunal of conscience, but not in the judicial tribunal, for they cannot summons them in contentious cases. Hence they cannot excommunicate, but they can absolve them in the tribunal of Penance. And though the tribunal of Penance is higher, yet more solemnity is requisite in the judicial tribunal, because therein it is necessary to make satisfaction not only to God but also to man.

Whether those who are not priests can excommunicate?

Objection 1: It would seem that those who are not priests cannot excommunicate. Because excommunication is an act of the keys, as stated in Sent. iv, D, 18. But those who are not priests have not the keys. Therefore they cannot excommunicate.

Objection 2: Further, more is required for excommunication than for absolution in the tribunal of Penance. But one who is not a priest cannot absolve in the tribunal of Penance. Neither therefore can he excommunicate.

On the contrary, Archdeacons, legates and bishops-elect excommunicate, and yet sometimes they are not priests. Therefore not only priests can excommunicate.

I answer that, Priests alone are competent to dispense the sacraments wherein grace is given: wherefore they alone can loose and bind in the tribunal of Penance. On the other hand excommunication regards grace, not directly but consequently, in so far as it deprives a man of the Church's prayers, by which he is disposed for grace or preserved therein. Consequently even those who are not priests, provided they have jurisdiction in a contentious court, can excommunicate.

Reply to Objection 1: Though they have not the key of orders, they have the key of jurisdiction.

Reply to Objection 2: These two are related to one another as something exceeding and something exceeded [*Cf. A[1], a[2]; Q[24], A[1], ad 1], and consequently one of them may be within the competency of someone while the other is not.

Whether a man who is excommunicated or suspended can excommunicate another?

Objection 1: It would seem that one who is excommunicated or suspended can excommunicate another. For such a one has lost neither orders nor jurisdiction, since neither is he ordained anew when he is absolved, nor is his jurisdiction renewed. But excommunication requires nothing more

than orders or jurisdiction. Therefore even one who is excommunicated or suspended can excommunicate.

Objection 2: Further. it is a greater thing to consecrate the body of Christ than to excommunicate. But such persons can consecrate. Therefore they can excommunicate.

On the contrary, one whose body is bound cannot bind another. But spiritual gyves are stronger than bodily fetters. Therefore one who is excommunicated cannot excommunicate another, since excommunication is a spiritual chain.

I answer that, Jurisdiction can only be used in relation to another man. Consequently, since every excommunicated person is severed from the communion of the faithful, he is deprived of the use of jurisdiction. And as excommunication requires jurisdiction, an excommunicated person cannot excommunicate, and the same reason applies to one who is suspended from jurisdiction. For if he be suspended from orders only, then he cannot exercise his order, but he can use his jurisdiction, while, on the other hand, if he be suspended from jurisdiction and not from orders. he cannot use his jurisdiction, though he can exercise his order: and if he be suspended from both, he can exercise neither.

Reply to Objection 1: Although an excommunicated or suspended person does not lose his jurisdiction, yet he does lose its use.

Reply to Objection 2: The power of consecration results from the power of the character which is indelible, wherefore, from the very fact that a man has the character of order, he can always consecrate, though not always lawfully. It is different with the power of excommunication which results from jurisdiction, for this can be taken away and bound.

Whether a man can excommunicate himself, his equal, or his superior?

Objection 1: It would seem that a man can excommunicate himself, his equal, or his superior. For an angel of God was greater than Paul, according to Mat. 11:11: "He that is lesser in the kingdom of heaven is greater then he, a greater" than whom "hath not risen among men that are born of women." Now Paul excommunicated an angel from heaven (Gal. 1:8). Therefore a man can excommunicate his superior.

Objection 2: Further, sometimes a priest pronounces a general excommunication for theft or the like. But it might happen that he, or his equal, or a superior has done such things. Therefore a man can excommunicate himself, his equal, or a superior.

Objection 3: Further, a man can absolve his superior or his equal in the tribunal of Penance, as when a bishop confesses to his subject, or one priest confesses venial sins to another. Therefore it seems that a man may also excommunicate his superior, or his equal.

On the contrary, Excommunication is an act of jurisdiction. But no man has jurisdiction over himself (since one cannot be both judge and defendant in the same trial), or over his superior, or over an equal. Therefore a man cannot excommunicate his superior, or his equal, or himself.

I answer that, Since, by jurisdiction, a man is placed above those over whom he has jurisdiction, through being their judge, it follows that no man has jurisdiction over himself, his superior, or his equal, and that, consequently, no one can excommunicate either himself, or his superior, or his equal.

Reply to Objection 1: The Apostle is speaking hypothetically, i.e. supposing an angel were to sin, for in that case he would not be higher than the Apostle, but lower. Nor is it absurd that, if the antecedent of a conditional sentence be impossible, the consequence be impossible also.

Reply to Objection 2: In that case no one would be excommunicated, since no man has power over his peer.

Reply to Objection 3: Loosing and binding in the tribunal of confession affects our relation to God only, in Whose sight a man from being above another sinks below him through sin; while on the other hand excommunication is the affair of an external tribunal in which a man does not forfeit his superiority on account of sin. Hence there is no comparison between the two tribunals. Nevertheless, even in the tribunal of confession, a man cannot absolve himself, or his superior, or his equal, unless the power to do so be committed to him. This does not apply to venial sins, because they can be remitted through any sacraments which confer grace, hence remission of venial sins follows the power of orders.

Whether a sentence of excommunication can be passed on a body of men?

Objection 1: It would seem that sentence of excommunication can be passed on a body of men. Because it is possible for a number of people to be united together in wickedness. Now when a man is obstinate in his wickedness he should be excommunicated. Therefore a body of men can be excommunicated.

Objection 2: Further, the most grievous effect of an excommunication is privation of the sacraments of the Church. But sometimes a whole country is laid under an interdict. Therefore a body of people can be excommunicated.

On the contrary, A gloss of Augustine [*Cf. Ep. ccl] on Mat. 12 asserts that the sovereign and a body of people cannot be excommunicated.

I answer that, No man should be excommunicated except for a mortal sin. Now sin consists in an act: and acts do not belong to communities, but, generally speaking, to individuals. Wherefore individual members of a community can be excommunicated, but not the community itself. And although sometimes an act belongs to a whole multitude, as when many draw a boat, which none of them could draw by himself, yet it is not probable that a community would so wholly consent to evil that there would be no dissentients. Now God, Who judges all the earth, does not condemn the just with the wicked (Gn. 18:25). Therefore the Church, who should imitate the judgments of God, prudently decided that a community should not be excommunicated, lest the wheat be uprooted together with the tares and cockle.

The Reply to the First Objection is evident from what has been said.

Reply to Objection 2: Suspension is not so great a punishment as excommunication, since those who are suspended are not deprived of the prayers of the Church, as the excommunicated are. Wherefore a man can be suspended without having committed a sin himself, just as a whole kingdom is laid under an interdict on account of the king's crime. Hence there is no comparison between excommunication and suspension.

Whether a man can be excommunicated who is already under sentence of excommunication?

Objection 1: It would seem that a man who is already under sentence of excommunication cannot be excommunicated any further. For the Apostle says (1 Cor. 5:12): "What have I to do to judge them that are without?" Now those who are excommunicated are already outside the Church. Therefore the Church cannot exercise any further judgment on them, so as to excommunicate them again.

Objection 2: Further, excommunication is privation of divine things and of the communion of the faithful. But when a man has been deprived of a thing, he cannot be deprived of it again. Therefore one who is excommunicated cannot be excommunicated again

On the contrary, Excommunication is a punishment and a healing medicine. Now punishments and medicines are repeated when necessary. Therefore excommunication can be repeated.

I answer that, A man who is under sentence of one excommunication, can be excommunicated again, either by a repetition of the same excommunication, for his greater confusion, so that he may renounce sin, or for some other cause. And then there are as many principal excommunications, as there are causes for his being excommunicated.

Reply to Objection 1: The Apostle is speaking of heathens and of other unbelievers who have no (sacramental) character, whereby they are numbered among the people of God. But since the baptismal character whereby a man is numbered among God's people, is indelible, one who is baptized always belongs to the Church in some way, so that the Church is always competent to sit in judgment on him.

Reply to Objection 2: Although privation does not receive more or less in itself, yet it can, as regards its cause. In this way an excommunication can be repeated, and a man who has been excommunicated several times is further from the Church's prayers than one who has been excommunicated only once.

OF COMMUNICATION WITH EXCOMMUNICATED PERSONS (THREE ARTICLES)

We must now consider communication with those who are excommunicated. Under this head there are three points of inquiry:

(1) Whether it is lawful to communicate in matters purely corporal with one who is excommunicated?

(2) Whether one who communicates with an excommunicated person is excommunicated?

(3) Whether it is always a mortal sin to communicate with an excommunicated person in matters not permitted by law?

Whether it is lawful, in matters purely corporal, to communicate with an excommunicated person?

Objection 1: It would seem that it is lawful, in matters purely corporal, to communicate with an excommunicated person. For excommunication is an act of the keys. But the power of the keys extends only to spiritual matters. Therefore excommunication does not prevent one from communicating with another in matters corporal.

Objection 2: Further, "What is instituted for the sake of charity, does not militate against charity" (Cf. Q[11], A[1], OBJ[1]). But we are bound by the precept of charity to succor our enemies,

which is impossible without some sort of communication. Therefore it is lawful to communicate with an excommunicated person in corporal matters.

On the contrary, It is written (1 Cor. 5:11): "With such an one not so much as to eat."

I answer that, Excommunication is twofold: there is minor excommunication, which deprives a man merely of a share in the sacraments, but not of the communion of the faithful. Wherefore it is lawful to communicate with a person lying under an excommunication of this kind, but not to give him the sacraments. The other is major excommunication which deprives a man of the sacraments of the Church and of the communion of the faithful. Wherefore it is not lawful to communicate with one who lies under such an excommunication. But, since the Church resorts to excommunication to repair and not to destroy, exception is made from this general law, in certain matters wherein communication is lawful, viz. in those which concern salvation, for one is allowed to speak of such matters with an excommunicated person; and one may even speak of other matters so as to put him at his ease and to make the words of salvation more acceptable. Moreover exception is made in favor of certain people whose business it is to be in attendance on the excommunicated person, viz. his wife, child, slave, vassal or subordinate. This, however, is to be understood of children who have not attained their majority, else they are forbidden to communicate with their father: and as to the others, the exception applies to them if they have entered his service before his excommunication, but not if they did so afterwards.

Some understand this exception to apply in the opposite way, viz. that the master can communicate with his subjects: while others hold the contrary. At any rate it is lawful for them to communicate with others in matters wherein they are under an obligation to them, for just as subjects are bound to serve their master, so is the master bound to look after his subjects. Again certain cases are excepted; as when the fact of the excommunication is unknown, or in the case of strangers or travelers in the country of those who are excommunicated, for they are allowed to buy from them, or to receive alms from them. Likewise if anyone were to see an excommunicated person in distress: for then he would be bound by the precept of charity to assist him. These are all contained in the following line: "Utility, law, lowliness, ignorance of fact, necessity," where "utility" refers to salutary words, "law" to marriage, "lowliness" to subjection. The others need no explanation.

Reply to Objection 1: Corporal matters are subordinate to spiritual matters. Wherefore the power which extends to spiritual things, can also extend to matters touching the body: even as the art which considers the end commands in matters ordained to the end.

Reply to Objection 2: In a case where one is bound by the precept of charity to hold communication, the prohibition ceases, as is clear from what has been said.

Whether a person incurs excommunication for communicating with one who is excommunicated?

Objection 1: It would seem that a person does not incur excommunication for communicating with one who is excommunicated. For a heathen or a Jew is more separated from the Church than a person who is excommunicated. But one does not incur excommunication for communicating with a heathen or a Jew. Neither, therefore, does one for communicating with an excommunicated Christian.

Objection 2: Further, if a man incurs excommunication for communicating with an excommunicated person, for the same reason a third would incur excommunication for

communicating with him, and thus one might go on indefinitely, which would seem absurd. Therefore one does not incur excommunication for communicating with one who is excommunicated.

On the contrary, An excommunicated person is banished from communion. Therefore whoever communicates with him leaves the communion of the Church: and hence he seems to be excommunicated.

I answer that, A person may incur excommunication in two ways. First, so that the excommunication includes both himself and whosoever communicates with him: and then, without any doubt, whoever communicates with him, incurs a major excommunication. Secondly, so that the excommunication is simply pronounced on him; and then a man may communicate with him either in his crime, by counsel, help or favor, in which case again he incurs the major excommunication, or he may communicate with him in other things by speaking to him, greeting him, or eating with him, in which case he incurs the minor excommunication.

Reply to Objection 1: The Church has no intention of correcting unbelievers as well as the faithful who are under her care: hence she does not sever those, whom she excommunicates, from the fellowship of unbelievers, as she does from the communion of the faithful over whom she exercises a certain power.

Reply to Objection 2: It is lawful to hold communion with one who has incurred a minor excommunication, so that excommunication does not pass on to a third person.

Whether it is always a mortal sin to communicate with an excommunicated person in other cases than those in which it is allowed?

Objection 1: It would seem that it is always a mortal sin to hold communion with an excommunicated person in other cases than those in which it is allowed. Because a certain decretal (Cap. Sacris: De his quae vi, metuve, etc.) declares that "not even through fear of death should anyone hold communion with an excommunicated person, since one ought to die rather than commit a mortal sin." But this would be no reason unless it were always a mortal sin to hold communion with an excommunicated person. Therefore, etc.

Objection 2: Further, it is a mortal sin to act against a commandment of the Church. But the Church forbids anyone to hold communion with an excommunicated person. Therefore it is a mortal sin to hold communion with one who is excommunicated.

Objection 3: Further, no man is debarred from receiving the Eucharist on account of a venial sin. But a man who holds communion with an excommunicated person, outside those cases in which it is allowed, is debarred from receiving the Eucharist, since he incurs a minor excommunication. Therefore it is a mortal sin to hold communion with an excommunicated person, save in those cases in which it is allowed.

Objection 4: Further, no one should incur a major excommunication save for a mortal sin. Now according to the law (Can. Praecipue, seqq., caus. xi) a man may incur a major excommunication for holding communion with an excommunicated person. Therefore it is a mortal sin to hold communion with one who is excommunicated.

On the contrary, None can absolve a man from mortal sin unless he have jurisdiction over him. But any priest can absolve a man for holding communion with those who are excommunicated. Therefore it is not a mortal sin.

Further, the measure of the penalty should be according to the measure of the sin, as stated in Dt. 25:3. Now the punishment appointed by common custom for holding communion with an excommunicated person is not that which is inflicted for mortal sin, but rather that which is due for venial sin. Therefore it is not a mortal sin.

I answer that, Some hold that it is always a mortal sin to hold communion with an excommunicated person, by word or in any of the forbidden ways mentioned above (A[2]), except in those cases allowed by law (Cap. Quoniam). But since it seems very hard that a man should be guilty of a mortal sin by uttering just a slight word to an excommunicated person, and that by excommunicating a person one would endanger the salvation of many, and lay a snare which might turn to one's own hurt, it seems to others more probable that he is not always guilty of a mortal sin, but only when he holds communion with him in a criminal deed, or in an act of Divine worship, or through contempt of the Church.

Reply to Objection 1: This decretal is speaking of holding communion in Divine worship. It may also be replied that the same reason applies both to mortal and venial sin, since just as one cannot do well by committing a mortal sin, so neither can one by committing a venial sin: so that just as it is a man's duty to suffer death rather than commit a mortal sin, so is it his duty to do so sooner than commit a venial sin, inasmuch as it is his duty to avoid venial sin.

Reply to Objection 2: The commandment of the Church regards spiritual matters directly, and legitimate actions as a consequence: hence by holding communion in Divine worship one acts against the commandment, and commits a mortal sin; but by holding communion in other matters, one acts beside the commandment, and sins venially.

Reply to Objection 3: Sometimes a man is debarred from the Eucharist even without his own fault, as in the case of those who are suspended or under an interdict, because these penalties are sometimes inflicted on one person for the sin of another who is thus punished.

Reply to Objection 4: Although it is a venial sin to hold communion with one who is excommunicated, yet to do so obstinately is a mortal sin: and for this reason one may be excommunicated according to the law.

OF ABSOLUTION FROM EXCOMMUNICATION (THREE ARTICLES)

We must now consider absolution from excommunication: under which head there are three points of inquiry:

(1) Whether any priest can absolve his subject from excommunication?

(2) Whether a man can be absolved from excommunication against his will?

(3) Whether a man can be absolved from one excommunication without being absolved from another?

Whether any priest can absolve his subject from excommunication?

Objection 1: It would seem that any priest can absolve his subject from excommunication. For the chains of sin are stronger than those of excommunication. But any priest can absolve his subject from sin. Therefore much more can he absolve him from excommunication.

Objection 2: Further, if the cause is removed the effect is removed. But the cause of excommunication is a mortal sin. Therefore since any priest can absolve (his subject) from that mortal sin, he is able likewise to absolve him from the excommunication.

On the contrary, It belongs to the same power to excommunicate as to absolve from excommunication. But priests of inferior degree cannot excommunicate their subjects. Neither, therefore, can they absolve them.

I answer that, Anyone can absolve from minor excommunication who can absolve from the sin of participation in the sin of another. But in the case of a major excommunication, this is pronounced either by a judge, and then he who pronounced sentence or his superior can absolve---or it is pronounced by law, and then the bishop or even a priest can absolve except in the six cases which the Pope, who is the maker of laws, reserves to himself: the first is the case of a man who lays hands on a cleric or a religious; the second is of one who breaks into a church and is denounced for so doing; the third is of the man who sets fire to a church and is denounced for the deed; the fourth is of one who knowingly communicates in the Divine worship with those whom the Pope has excommunicated by name; the fifth is the case of one who tampers with the letters of the Holy See; the sixth is the case of one who communicates in a crime of one who is excommunicated. For he should not be absolved except by the person who excommunicated him, even though he be not subject to him, unless, by reason of the difficulty of appearing before him, he be absolved by the bishop or by his own priest, after binding himself by oath to submit to the command of the judge who pronounced the excommunication on him.

There are however eight exceptions to the first case: (1) In the hour of death, when a person can be absolved by any priest from any excommunication; (2) if the striker be the doorkeeper of a man in authority, and the blow be given neither through hatred nor of set purpose; (3) if the striker be a woman; (4) if the striker be a servant, whose master is not at fault and would suffer from his absence; (5) if a religious strike a religious, unless he strike him very grievously; (6) if the striker be a poor man; (7) if he be a minor, an old man, or an invalid; (8) if there be a deadly feud between them.

There are, besides, seven cases in which the person who strikes a cleric does not incur excommunication: (1) if he do it for the sake of discipline, as a teacher or a superior; (2) if it be done for fun; (3) if the striker find the cleric behaving with impropriety towards his wife his mother, his sister or his daughter; (4) if he return blow for blow at once; (5) if the striker be not aware that he is striking a cleric; (6) if the latter be guilty of apostasy after the triple admonition; (7) if the cleric exercise an act which is altogether contrary to the clerical life, e.g. if he become a soldier, or if he be guilty of bigamy [*Namely, that which is known by canonists as "similar bigamy"].

Reply to Objection 1: Although the chains of sin are in themselves greater than those of excommunication, yet in a certain respect the chains of excommunication are greater, inasmuch as they bind a man not only in the sight of God, but also in the eye of the Church. Hence absolution from excommunication requires jurisdiction in the external forum, whereas absolution from sin does not. Nor is there need of giving one's word by oath, as in the case of absolution from excommunication, because, as the Apostle declares (Heb. 6:16), controversies between men are decided by oath.

Reply to Objection 2: As an excommunicated person has no share in the sacraments of the Church, a priest cannot absolve him from his guilt, unless he be first absolved from excommunication.

Whether anyone can be absolved against his will?

Objection 1: It would seem that no man can be absolved against his will. For spiritual things are not conferred on anyone against his will. Now absolution from excommunication is a spiritual favor. Therefore it cannot be granted to a man against his will.

Objection 2: Further, the cause of excommunication is contumacy. But when, through contempt of the excommunication, a man is unwilling to be absolved, he shows a high degree of contumacy. Therefore he cannot be absolved.

On the contrary, Excommunication can be pronounced on a man against his will. Now things that happen to a man against his will, can be removed from him against his will, as in the case of the goods of fortune. Therefore excommunication can be removed from a man against his will.

I answer that, Evil of fault and evil of punishment differ in this, that the origin of fault is within us, since all sin is voluntary, whereas the origin of punishment is sometimes without, since punishment does not need to be voluntary, in fact the nature of punishment is rather to be against the will. Wherefore, just as a man commits no sin except willingly, so no sin is forgiven him against his will. On the other hand just as a person can be excommunicated against his will, so can he be absolved therefrom.

Reply to Objection 1: The assertion is true of those spiritual goods which depend on our will, such as the virtues, which we cannot lose unwillingly; for knowledge, although a spiritual good, can be lost by a man against his will through sickness. Hence the argument is not to the point.

Reply to Objection 2: It is possible for excommunication to be removed from a man even though he be contumacious, if it seem to be for the good of the man for whom the excommunication was intended as a medicine.

Whether a man can be absolved from one excommunication without being absolved from all?

Objection 1: It would seem that a man cannot be absolved from one excommunication without being absolved from all. For an effect should be proportionate to its cause. Now the cause of excommunication is a sin. Since then a man cannot be absolved from one sin without being absolved from all, neither can this happen as regards excommunication.

Objection 2: Further, absolution from excommunication is pronounced in the Church. But a man who is under the ban of one excommunication is outside the Church. Therefore so long as one remains, a man cannot be loosed from another.

On the contrary, Excommunication is a punishment. Now a man can be loosed from one punishment, while another remains. Therefore a man can be loosed from one excommunication and yet remain under another.

I answer that, Excommunications are not connected together in any way, and so it is possible for a man to be absolved from one, and yet remain under another.

It must be observed however that sometimes a man lies under several excommunications pronounced by one judge; and then, when he is absolved from one, he is understood to be absolved from all, unless the contrary be expressed, or unless he ask to be absolved from excommunication on one count only, whereas he was excommunicated under several. On the other hand sometimes a man lies under several sentences of excommunication pronounced by several judges; and then,

when absolved from one excommunication, he is not therefore absolved from the others, unless at his prayer they all confirm his absolution, or unless they all depute one to absolve him.

Reply to Objection 1: All sins are connected together in aversion from God, which is incompatible with the forgiveness of sin: wherefore one sin cannot be forgiven without another. But excommunications have no such connection. Nor again is absolution from excommunication hindered by contrariety of the will, as stated above (A[2]). Hence the argument does not prove.

Reply to Objection 2: Just as such a man was for several reasons outside the Church so is it possible for his separation to be removed on one count and to remain on another.

OF INDULGENCES (THREE ARTICLES)

We must now consider indulgence: (1) in itself; (2) those who grant indulgence; (3) those who receive it.

Under the first head there are three points of inquiry:

(1) Whether an indulgence remits any part of the punishment due for the satisfaction of sins?

(2) Whether indulgences are as effective as they claim to be?

(3) Whether an indulgence should be granted for temporal assistance?

Whether an indulgence can remit any part of the punishment due for the satisfaction of sins?

Objection 1: It would seem that an indulgence cannot remit any part of the punishment due for the satisfaction of sins. Because a gloss on 2 Tim. 2:13, "He cannot deny Himself," says: "He would do this if He did not keep His word." Now He said (Dt. 25:2): "According to the measure of the sin shall the measure also of the stripes be." Therefore nothing can be remitted from the satisfactory punishment which is appointed according to the measure of sin.

Objection 2: Further, an inferior cannot absolve from an obligation imposed by his superior. But when God absolves us from sin He binds us to temporal punishment, as Hugh of St. Victor declares (Tract. vi Sum. Sent. [*Of doubtful authenticity]). Therefore no man can absolve from that punishment, by remitting any part of it.

Objection 3: Further, the granting of the sacramental effect without the sacraments belongs to the power of excellence. Now none but Christ has the power of excellence in the sacraments. Since then satisfaction is a part of the sacrament of Penance, conducing to the remission of the punishment due, it seems that no mere man can remit the debt of punishment without satisfaction.

Objection 4: Further, the power of the ministers of the Church was given them, not "unto destruction," but "unto edification" (2 Cor. 10:8). But it would be conducive to destruction, if satisfaction, which was intended for our good, inasmuch as it serves for a remedy, were done away with. Therefore the power of the ministers of the Church does not extend to this.

On the contrary, It is written (2 Cor. 2:10): "For, what I have pardoned, if I have pardoned anything, for your sakes have I done it in the person of Christ," and a gloss adds: i.e. "as though Christ Himself had pardoned." But Christ could remit the punishment of a sin without any satisfaction, as evidenced in the case of the adulterous woman (Jn. 8). Therefore Paul could do so likewise. Therefore the Pope can too, since his power in the Church is not less than Paul's.